

HOUSE No. 267

The Commonwealth of Massachusetts

PRESENTED BY:

Joan Meschino

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to provide notice to counsel of changes in a child's placement and other events.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Joan Meschino</i>	<i>3rd Plymouth</i>	<i>1/8/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/25/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>10/21/2025</i>

HOUSE No. 267

By Representative Meschino of Hull, a petition (accompanied by bill, House, No. 267) of Joan Meschino and Colleen M. Garry for legislation to require the Department of Children and Families to provide notice to counsel of changes in a child's or a young adult's placement and other events. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 253 OF 2021-2022.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to provide notice to counsel of changes in a child's placement and other events.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 29 of chapter 119 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by inserting after the second paragraph the following
3 paragraphs:

4 No later than five business days before any non-emergency change in a child's or a
5 young adult's placement or any non-emergency hospitalization, and no later than one business
6 day after any emergency change in a child's or a young adult's placement or any emergency
7 hospitalization, the department shall provide notice of the change in placement or hospitalization
8 to the child's or the young adult's attorney.

9 No later than the first business day thereafter, the department shall provide notice to a
10 child's attorney if it receives a report under section 51A and the child is the subject of the report.
11 No later than the first business day thereafter, the department shall provide notice to a child's
12 attorney or a young adult's attorney if it receives a report under section 51A that raises
13 substantial questions regarding the suitability of the child's or young adult's current placement or
14 any of the child's or young adult's service providers.

15 No later than the first business day thereafter, the department shall provide notice to a
16 child's or young adult's attorney whenever it becomes aware of: (1) the child or young adult
17 being arrested; (2) the child's or young adult's potential involvement in any proceeding under
18 this chapter or any criminal investigation or proceeding; (3) the child or young adult being
19 suspended from school; or (4) the child or young adult being the subject of any proceeding that
20 could result in his or her suspension or expulsion from school.

21 SECTION 2. The department of children and families shall promulgate regulations to
22 implement section 1 of this act no later than six months from the effective date of this act.